

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000107

C.Lopez

Recorded On: 4/13/2026 3:06:51 PM

Number of Pages: 1

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**Examined and Charged as Follows:**

**Total Recording: 12.00**

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY  
because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number      00000000107  
Receipt Number        1974728  
Recorded Date/Time:   4/13/2026 3:06:51 PM  
Station:                CCH01-CCK098

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,  
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

## NOTICE OF SUBSTITUTE TRUSTEE'S SALE

STATE OF TEXAS )  
 )  
COUNTY OF EL PASO )

WHEREAS, by Renewal and Extension Deed of Trust (the “*Deed of Trust*”) dated November 9, 2023 and recorded on November 13, 2023 at Document Number 20230083176, Official Records of El Paso County, Texas, **BORDER PROPERTIES GROUP, LLC**, a Texas limited liability company (the “*Grantor*”) as grantor conveyed to Mark Salloum as trustee certain property situated in El Paso County, Texas to secure **SM VER Enterprises, LLC, RAACK Capital, LLC, BABK Trust 1 and KTD A Trust 1** (collectively, the “*Lender*”) as beneficiaries in the payment of a Promissory Note dated November 9, 2023 in the original principal amount of \$1,600,000.00 (the “*Note*”); and

WHEREAS, the Borrower defaulted on the Note, the maturity date of the Note was accelerated and the entire balance is now due and owing in full, the Note remains unpaid and in default, and the Lender desires to invoke the power of sale provided for in the Deed of Trust; and

WHEREAS, the Lender has appointed **James W. Brewer** as Substitute Trustee in the place of the original trustee, the appointment being made in the manner authorized by the Deed of Trust. Mr. Brewer's contact information is James W. Brewer, Kemp Smith LLP, P.O. Box 2800, El Paso, TX 79999-2800; james.brewer@kempsmith.com; (915) 533-4424; and

WHEREAS, the Lender has requested that the Substitute Trustee sell the Real Property described and defined in the Deed of Trust.

NOW, THEREFORE, notice is hereby given that on May 5, 2026, beginning between 10:00 o'clock a.m. and 1:00 o'clock p.m., and concluding not later than 1:00 o'clock p.m. of that day, Mr. Brewer as Substitute Trustee will sell the following property to the highest bidder for cash. The sale will take place at the El Paso County Coliseum, 4100 E. Paisano Drive, El Paso, Texas 79905, or at such other place as may be designated by the County Commissioners Court for non-judicial foreclosure sales.

The real property to be sold is described on Exhibit "A" attached hereto (the "*Real Property*").

Lender has reserved the right to credit bid all or any portion of the indebtedness owing on the Note.

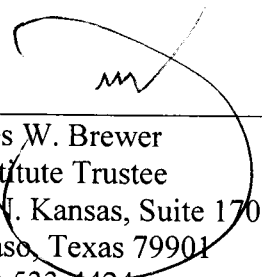
Pursuant to Section 51.009 of the Texas Property Code, the Real Property will be sold “AS IS”, without any expressed or implied warranties, except as to the warranties of title, and at the purchaser’s own risk.

Pursuant to Section 51.0075(a) of the Texas Property Code, the Substitute Trustee reserves the right to set further reasonable conditions for conducting the foreclosure sale. Any such further conditions shall be announced before bidding is opened for the sale.

**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

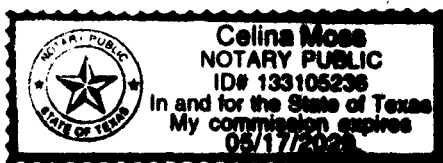
**ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY.**

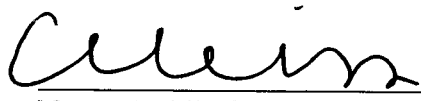
EXECUTED on April 13, 2026.

  
\_\_\_\_\_  
James W. Brewer  
Substitute Trustee  
221 N. Kansas, Suite 1700  
El Paso, Texas 79901  
(915) 533-4424  
(915) 546-5360 (facsimile)

STATE OF TEXAS           )  
                                          )  
COUNTY OF EL PASO    )

This instrument was acknowledged before me on April 13, 2026, by James W. Brewer.



  
\_\_\_\_\_  
Notary Public for the State of Texas

**PARCEL 1:** A parcel of land containing 0.502 acres, more or less, being a portion of Lot 3, Block 11, VISTA DEL SOL UNIT TWO, an Addition to the City of El Paso, El Paso County, Texas, according to the Map or Plat thereof recorded in Volume 27, Page 33, Plat Records of El Paso County, Texas and being more particularly described by Metes and Bounds as follows:

Beginning at a City of El Paso monument at the centerline intersection of Yarbrough and Vista del Sol Drives, thence South 54° 07' 00" East along the centerline of Vista del Sol Drive a distance of 60.00 feet to a point; thence South 35° 53' 00" West a distance of 170.25 feet to a point on the southerly right-of-way line of Yarbrough Drive and said point being the POINT OF BEGINNING;

Thence South 54° 07' 00" East a distance of 175.00 feet;

Thence South 35° 53' 00" West a distance of 125.00 feet;

Thence North 54° 07' 00" West a distance of 175.00 feet;

Thence North 35° 53' 00" East a distance of 125.00 feet to the POINT OF BEGINNING and containing in all 21,875.00 square feet or 0.502 acres of land more or less.

**NOTE:** The Company is prohibited from insuring the area or quantity of land described herein. Any statement in the above legal description is not a representation that such area or quantity is correct, but is made only for informational and/or identification purposes and does not override or alter the insuring provisions of Item two (2) of Schedule B hereof.

**PARCEL 2:** Non-Exclusive Easement Rights created in that certain Easement Agreement, dated December 6, 1974, by and between E. Guy Merrell and Lincon Leasing, Inc., filed for record on December 9, 1974, in the Office of the County Clerk of El Paso County, Texas in Volume 563, Page 1381, Official Records El Paso County, Texas, in and to a parcel of land containing 0.500 acres, more or less, being a portion of Lot 3, Block 11, VISTA DEL SOL UNIT TWO, an Addition to the City of El Paso, El Paso County, Texas, Map or Plat thereof recorded in Volume 27, Page 33, Plat Records of El Paso County, Texas and being more particularly described by Metes and Bounds as follows:

Beginning at a City of El Paso monument at the centerline intersection of Yarbrough and Vista del Sol Drives, thence South 54° 07' 00" East along the centerline of Vista del Sol Drive a distance of 60.00 feet to a point; thence South 35° 53' 00" West a distance of 65.00 feet to a point on the southerly right-of-way line of Yarbrough Drive and said point being the POINT OF BEGINNING;

Thence 31.42 feet along the arc of a curve to the right whose interior angle is 90° 00' 00" whose radius is 20.00 feet and whose chord bears North 80° 53' 00" East a distance of 28.28 feet;

Thence South 54° 07' 00" East a distance of 139.38 feet;

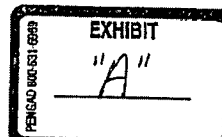
Thence 15.62 feet along the arc of a curve to the left whose interior angle is 00° 38' 58" whose radius is 1378.29 feet and whose chord bears South 54° 26' 29" East a distance of 15.62 feet;

Thence South 35° 53' 00" West a distance of 125.08 feet;

Thence North 54° 07' 00" West a distance of 175.00 feet;

Thence North 35° 53' 00" East a distance of 105.00 feet to the POINT OF BEGINNING and containing in all 21,788.18 square feet or 0.500 acres of land more or less.

**NOTE:** The Company is prohibited from insuring the area or quantity of land described herein. Any statement in the above legal description is not a representation that such area or quantity is correct, but is made only for informational and/or identification purposes and does not override or alter the insuring provisions of item two



(2) of Schedule B hereof.

PARCEL 3: A parcel of land containing 0.3581 acres, more or less, being a portion of Lot 3, Block 5, STONE SUBDIVISION UNIT ONE, an Addition to the City of El Paso, El Paso County, Texas, Map or Plat thereof recorded in Volume 6, Page 37, Plat Records of El Paso County, Texas and being more particularly described by Metes and Bounds as follows:

COMMENCING FOR REFERENCE AT A FOUND CITY MONUMENT AT THE CENTERLINE INTERSECTION OF MESA STREET (120' RIGHT OF WAY) AND WALLINGTON DRIVE (80' RIGHT OF WAY), THENCE, NORTH 78°56'34" EAST A DISTANCE OF 127.83 FEET TO A SET NAIL ON A ROCK WALL AT THE NORTHERLY RIGHT OF WAY OF MESA STREET, THE WEST CORNER OF SAID LOT, AND THE "TRUE POINT OF BEGINNING".

THENCE, 118.84 FEET ALONG THE ARC OF A NON-TANGENTIAL CURVE TO THE LEFT WHICH HAS A RADIUS OF 281.49 FEET, A CENTRAL ANGLE OF 24°11'19" A TANGENT OF 60.32 FEET, AND A CHORD WHICH BEARS NORTH 19°24'24" EAST A DISTANCE OF 117.96 FEET TO A SET NAIL ON PAVEMENT;

THENCE, SOUTH 50°49'00" EAST A DISTANCE OF 164.91 FEET TO A SET NAIL ON ROCK WALL;

THENCE SOUTH 39°11'00" WEST A DISTANCE OF 111.00 FEET TO A SET "X" ON GUARD POST AT THE NORTHERLY RIGHT OF WAY OF MESA STREET;

THENCE NORTH 50°49'00" WEST A DISTANCE OF 125.00 FEET TO THE "TRUE POINT OF BEGINNING" AND CONTAINING IN ALL 15,598 SQUARE FEET OR 0.3581 ACRES OF LAND MORE OR LESS.

NOTE: The Company is prohibited from insuring the area or quantity of land described herein. Any statement in the above legal description is not a representation that such area or quantity is correct, but is made only for informational and/or identification purposes and does not override or alter the insuring provisions of Item two (2) of Schedule B hereof.

